

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: September 9, 2013

TYPE OF DOCUMENT: (☒ ORDINANCE) (☐ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (CHANGE ORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSORS: (ORDINANCE OR RESOLUTION) Sean Allen

EXACT WORDING FOR AGENDA: An Ordinance pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to MR-2 Medium Density Residential – Developing for Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, between Canyon and Ridge Roads).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____) (Grant _____)

CONTACT PERSON: Brett Walker PHONE: 637-6305 DEPT: Bldg/Development

OTHER CITY DEPARTMENT AFFECTED: Engineering Tech Branch

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney () Dept. Head (X)

General Comments: The City of Cheyenne Planning Commission recommended approval of the above described Zone Change at their meeting on September 3, 2013, by a unanimous vote of 4-0. The recommendation was made pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC. See the attached Staff Report for more definitive information.

Submitted by: Brandon Cammarata Title: Director Date: September 5, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech Branch

City Clerk's Office

Development Office

STAFF REPORT

Leaning Tree Zone Change

Summation

Zone District Map Amendment Process

CASE NUMBER(s): UDC-13-00306

FILE CODE: CRG-Z

PREPARED BY: Brett Walker

MEETING September 3, 2013 – Planning Commission

DATES: September 9, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Exhibit Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from **NB Neighborhood Business** to **MR-2 Medium Density Residential – Developing**, pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

STAFF REPORT UPDATE (9/4/2013): At its regular meeting on Tuesday, September 3, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Zone Change by a unanimous vote of 4 to 0. The recommendation was made pursuant to the criteria outlined in Section 2.2.1.d of the UDC.

STAFF REPORT

Leaning Tree Zone Change

Zone District Map Amendment Process

CASE NUMBER(s): UDC-13-00306

FILE CODE: CRG-Z

PREPARED BY: Brett Walker

MEETING DATES: September 3, 2013 – Planning Commission
September 9, 2013 – City Council

OWNER: James Fraundienst
Leaning Tree Homes
1740 Dell Range Blvd., Ste. 423
Cheyenne, WY 82009

AGENT: Casey Palma, LEED-AP
Steil Surveying Services, LLC
1102 W. 19th Street
Cheyenne, WY 82001
307-634-7273

PROJECT: Leaning Tree Zone Change

WORK DESCRIPTIONS: From NB to MR-2

LOCATION:

1. Legal Description: Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming
2. Location: South of and adjacent to Storey Boulevard., between Canyon and Ridge Roads.
3. Address: Vacant

SIZE: Total Area: 1.18 Acres (51,301 Sqft)

CURRENT ZONING: NB Neighborhood Business

PROPOSED ZONING: MR-2 Medium Density Residential - Developing

EXISTING LAND USE: Vacant

PROPOSED LAND USE: Multi-family

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	North Cheyenne Park	P	City
South	Residential	MR-2	City
East	Residential	MR-2/A-1	City/County
West	Residential	MR-2	City

EXECUTIVE SUMMARY: This Zone Change would substantially alter the potential use of the property from commercial to residential. The Zone Change request has been submitted in order to facilitate multi-family residential development on a vacant parcel, south of the North Cheyenne Community Park, across Storey Boulevard (a minor arterial). The current zoning of NB Neighborhood Business does not provide for residential uses while the proposed Zone Change request to MR-2 would allow for a range of residential uses. The exhibit map submitted for the Zone Change request suggests 3 four-plexes on each lot for a total of 24-units on both lots. In an MR-2 District, multifamily requires a Conditional Use Approval and Site Plan Review. Lot 15 is 28,302 sqft. Lot 16 is 23,095.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE. *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne contemplates Urban Residential for this area. The Urban Residential category allows for a broader variety of residential types, including single-family residences, duplexes, patio homes, townhomes, condominiums and apartment. Supporting and complementary uses, including open space and recreation, schools, places of worship, and other public or civic uses are encouraged. Senior housing facilities are also appropriate. Neighborhood commercial may be appropriate in newly developing areas if it complies with the criteria for Neighborhood Business Centers, as illustrated below (ShapeCheyenne, Page 3-4):

The proposal is in concordance with many of the Policies highlighted in the Comprehensive Plan. Specifically, as follows:

Policy 1.3.b: Variety of Housing in Neighborhoods.

The community will encourage the incorporation of a mixture of housing types with varied price ranges and densities to attempt to meet the needs of all segments of the community.

Policy 2.3.a: Mix of Housing Types

The community will strongly encourage using a variety of housing types and models, sizes, and price ranges in new neighborhoods to provide expanded housing options. Incorporating a mix of housing types at both the neighborhood scale and the block scale helps create varied and interesting streetscapes and a diverse community.

Policy 2.3.b: Higher Density Housing

Higher density and senior housing should typically be located near activity centers and transportation corridors (arterial and collector streets) to provide for convenient access, and should include common areas such as courtyards, playgrounds, or open space.

Policy 4.3.b: Neighborhood Design to Support Walking and Bicycling

New neighborhoods should contain a mix of compatible uses so that residents have recreation, employment and shopping opportunities within walking or bicycling distance of their homes.

Policy 6.2.b: Connected Community-Wide Trail System

The community will connect a larger community wide primary trail system to connect major destinations and provide opportunities to recreation routes (loops), as identified through the Master Plan. Developers should provide local trails to connect neighborhoods to the regional Greenway.

SURROUNDING AREA. *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The application is compatible with nearby property. The proposed MR-2 district matches both the current zoning and Recommended Land Use of the surrounding area and would strictly implement the primary uses recommended with the Future Land Use Plan.

ZONING, BASIC STANDARDS & USES. *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;*

The existing NB zone could potentially provide services to the surrounding neighborhood, though the ability to serve the neighborhood would be limited since the lots are not integrated into the surrounding neighborhood street network.

The proposed zoning would match the surrounding area, especially to the south and west, and future development would necessarily fit in with the density and scale the district intends as well as blend in with current development patterns. This Zone Change request, if granted, substantially limits commercial and industrial proposals and promotes primarily residential uses. *See attached Use Table comparison.*

STREETS & OPEN SPACE. *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;*

The site is across the street from a major park, and Greenway access, so the Open Space component will meet the exemption requirements. It is unclear whether any ROW will be proposed but with such a small site it is unlikely that any new public roads outside of alley access will be considered. Access onto Storey Boulevard will be the primary concern to the development of the site, irrespective of the zone district and/or proposed uses. Storey Blvd. is considered a minor arterial. Other potential accesses to the site will be limited. As an infill site, the street network is already established and this development will not impact the local neighborhood streets since it will access directly onto Storey.

ZONING, INTENT, APPLICABILITY & DESIGN OBJECTIVES. *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

In order for the multi-family development plan suggested in this application to manifest, the site may need to be replatted into a conforming configuration, a Conditional Use Approval will need to be granted, and a Site Plan review will need to be approved. The proposed four-plexes would not work in this Zone District with the current configuration of the lots. However, given the overall area of land (1.2 acres) it appears that some configuration of higher-density development can be accommodated on this site, though it remains to be evaluated as to whether the level of density proposed can be adequately accommodated.

The MR-2 District is intended for a mix of density and dwelling types within a neighborhood and where all uses require full access to public infrastructure and city services. In this case, it appears that while a water main runs along Storey Blvd., connecting the site to sewer will require the extension of that City service in some manner. The regulations are designed to protect the neighborhood character of the district and protect the primarily residential use of land. Design standards are in place to provide reasonable assurance the development will be compatible with the surrounding neighborhood. Landscaping requirements throughout the site mitigate the impact on the neighborhood as well as building, parking, and lighting design standards. This application proposes multi-family residential at a density of about 20 dwelling units per acre. The MR-2 District is applicable to areas where more compact neighborhood development patterns are desired, and specifically the Urban Residential Category in the Cheyenne Comprehensive Plan.

The site will have access to the Greenway System (there is a below-grade crossing to North Cheyenne Community Park a few hundred feet to the west along Storey Blvd. This will allow and encourage more transportation alternatives. This Zone Change would add only a minimal amount of MR-2 zoned land with respect to what is an already established MR-2 District in the immediate area.

ZONING, FUTURE DEVELOPMENT. *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

Should the proposal not materialize, and the MR-2 zoning is in place, this site will still have many options for residential development. The current configuration of the site is two lots, allowing for two single-family (detached) residential structures, a single twin-home (semi-attached) structure, or some configuration of multifamily (attached) on each lot (which would still require a site-plan review and conditional use, but no replatting). A variety of lot types and residential densities could be accommodated, though some sort of alley access could be required as accesses are limited onto minor arterials such as Storey Boulevard. Furthermore, a sewer main will need to be brought to the site before any development can occur.

REVIEWING AGENCY AND REVIEWERS COMMENTS: None

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: City Attorney, Engineering – General Engineering Tech/GIS, MPO, County Assessor, Development, Urban Planning

AGENCIES AND REVIEWERS NOT RESPONDING: None

OTHER COMMENTS RECEIVED: See Attached Letters

Encl: Zone Change Exhibit Map
Aerial Map
Use Table Comparison
Letters from Neighbors

cc: Owner
Agent/Applicant
File

Table 5-1: Zoning District Uses		
Zoning Districts	MR-2	NB
Category of Uses / Specific Uses		
Residential Uses		
Detached Dwelling	P	
Semi-attached Dwelling ("Duplex")	P	
Attached Dwelling ("Townhouse")	P	
Group dwellings	C	
Dormitories	C	
Multi-dwelling Building ("Apartment")	C	
Live/Work	C	P
Mixed-use Dwelling		P
Manufactured housing parks	C	
Civic Uses		
Neighborhood Assembly (<350 maximum occupancy)	C	A
Community Assembly (350 - 1000 maximum occupancy)		A
Cemeteries		A
Primary and secondary schools	C	A
Community Athletic Field	C	A
Service Uses		
Service Business - Limited (<3k)		P
Service Business - General (>3k)		C
Adult Care – Assisted Living	C	C
Adult Care – Nursing Home	C	
Child Care, In Home - Minor	P	P
Child Care, In Home - Major	A	P
Child Care, Center - Minor		P
Child Care, Center - Major		P
Entertainment, Venue (1000+ maximum occupancy)		A
Lodging, Bed and Breakfast	C	
Medical Care, Clinic		P
Medical Care, Office		P
Employment Uses		
Home occupations	P	P
Office – Limited (<3,500)	C	P
Office – general (3,500 – 20K)		C
Commercial Uses		
Convenience Retail / Corner Store (<2k)		P
Neighborhood Retail (2K - 5K)		P
Grocery Store <45K		P
Outdoor Sales, Limited		A
Outdoor Sales, Seasonal		C
Outdoor Sales, Event or Display Area		C
Bars and liquor stores		C
Automobile Service Repair		C
Automobile Service Station - Limited		C
Food Service – Limited (under 2K)		P
Food Service – general (2K – 4K)		C
Industrial Uses		
Limited Industrial		A
Public Service Uses		
Government Facility		P
Utility Stations	A	A

P = Permitted Use by Right

A = Administrative Approval

C = Conditional Use Approval

Blank = Not allowed under any standard of review

Jason and Gretchen Halley
3110 Holland Court
Cheyenne, WY 82009

RECEIVED
AUG 29 2013
BUILDING DEPARTMENT

August 28, 2013

To Whom It May Concern:

We are writing to strongly protest the proposal to develop four-plexes in our neighborhood. We do not feel this is an appropriate area for this type of development. We chose the Crest Ridge neighborhood due to the family atmosphere and low traffic level. We have small children and do not want the extra traffic, noise, and congestion the additional 24 family units would bring to our quiet neighborhood. Please take this written letter as our strong opposition against this proposal.

Sincerely,



Jason and Gretchen Halley



Zone Change Request
Roger & Katy Alexander to: BWalker

08/23/2013 10:03 AM

From: Roger & Katy Alexander <alexanders816@bresnan.net>
To: BWalker@cheyennecity.org,

History: This message has been replied to.

Dear Mr. Walker;

We are emailing you to inform you of our opposition to the "Zone Change Request Application for All of Lots 15 & 16, Block 17, Crest Ridge, 4th Filing." Our opposition is based on the certainty of negative impacts to the culture and character of the existing neighborhood, the potential creation of a five-fold increase in family density from the existing situation, and the certainty of negative impacts to the property values of the current property owners in the neighborhood.

We will provide more information regarding our opposition to the Zone Change Request Application in a letter to be mailed to you on August 23, 2013.

It is also our intention to speak at the Planning Commission Meeting on September 3, 2013.

Thank you for the opportunity to register our opposition of the Zone Change Request Application.

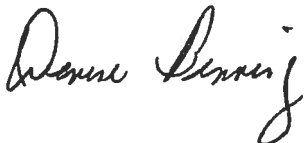
Sincerely,

Roger & Kathryn Alexander
Adjoining Property Owners

Dear Mr. Walker,

As a resident of the Crest Ridge Sub Divison I am concerned with the latest attempt to rezone and build 4 Plex's upon the vacant land on Holland and near Storey Blvd. This is a quiet residential neighborhood with all single family homes. I don't think an apartment complex would fit the neighborhood. It seems to be squeezing alot of buildings into a very small place when the rest of the neighbors have fairly large lots. Also I think it would add more traffic and noise to the area along with dumpsters, parking lots etc. The schools are already crowded and I doubt they could handle that many families moving in. What would come next, a new school to add to the taxes? And where would that be built? Could the Junior High and High school handle all these new children as they grow up? I am also concerned about that many cars coming and going in a neighborhood with many small children. Also there is the threat of increased crime and a threat of losing home value as some rentors do not take care of the property as owners do. Please reconsider this idea and know that many of us in this area are opposed to the idea. Thank you.

Sincerely,



Denise Benning

3016 Summit Ct.

Cheyenne, Wyoming 82009

307 635 5333

BUILDING&DEVELOPMENTOFFICE

AUG 16 2013

RECEIVED

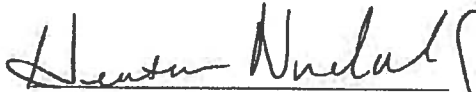
8/16/13

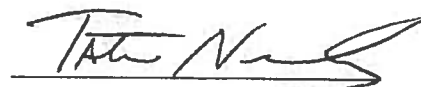
City of Cheyenne Development Office
ATTN: Brett Walker
2101 O'Neill Ave
Cheyenne, WY 82001

Mr. Walker:

This is in regards to the proposed rezoning for Leaning Tree Homes for Lots 15 & 16, Block 17, Crest Ridge 4th filing. My husband and I own 3117 Holland Court in the Crest Ridge subdivision. We are adamantly opposed to this rezoning. The six four-plex homes and parking lot that accompany the proposed plans do not blend with the already existing neighborhood established in Crest Ridge. We have serious concerns this will lower our property value and the value of our neighbor's homes. The four-plex homes that are proposed will undoubtedly cost much less than the average home in Crest Ridge and we are worried about the social aspect and what kind of people would be buying the homes in the lower price range. It offers 36 parking spaces for what appears to be a very small lot. That being said, we are also troubled about the prospect of increased traffic and an over-abundance of inhabitants. Please do not allow this zone change to go through. We have a nice neighborhood and we would like to keep it that way. This type of development simply doesn't belong in our neighborhood. New development should only take place in Crest Ridge if it is comparable with what already exists. We strongly oppose this zone change.

Thank you for your time,


Heather Nuckols


Tate Nuckols

RECEIVED
AUG 20 2013
BUILDING DEPARTMENT

Sir,

This letter is in reference to the planned building of 6 4-plex apartment buildings in the 3100-3200 Bk of Storey. I am a home owner who lives at 3122 Holland Ct and would have these apartments directly north of my home. I cannot stress how totally opposed myself and my spouse are to these apartments. This will change our neighborhood dramatically and not for the better. 10 years ago, when my wife and I bought our current home we chose the area for several reasons. Its safety, homes of high value, low noise, schools and quality of life. If an apartment complex positively affected property values then Cheyenne would have them in areas such as Western Hills, Western Hills North, Mustang Ridge, Saddle Ridge and The Point. Our neighborhood, Crestridge has higher end homes which are taken care of by their owners. Rentals do not have "pride in ownership," nor do they have residents who are concerned about their property values. This complex will negatively affect my property value as well as my neighbors.

My second concern is the safety of the complex. I have been in law enforcement for 16+ years and I am currently a patrol sergeant. It should be noted that I am not writing on behalf my agency or representing their views in anyway. My experience as a police officer gives me a base of knowledge. It is documented that police calls for service are higher at apartment complexes. There are more calls relating to violence, drugs, vandalism, and theft from apartment complexes/ rentals than there are from an average single family neighborhood. Rarely are these issues confined to the apartment complex and they do spill out into the surrounding area. The apartment owner or complex manager cannot and will not guarantee the quality of persons who will be living there. They also cannot guarantee these apartments will not be low income apartments.

Another concern is with the added noise of 24 additional families living in a small area. When our house was purchased this area was very quiet at all times. The addition of Storey Blvd has increased the noise significantly. I promise there will be an increase in noise disturbances in the area and this will lower mine and everyone in the neighborhood's quality of living. The addition of 24+ vehicles to area will also increase the congestion and accidents on Storey. It will increase the number of vehicles on Ridge, Canyon, Holland and Smith. Since the addition of Storey Blvd, I have already observed this. This apartment complex will only add to the congestion of the area.

This apartment complex is a losing proposition for the current residents on Holland Ct, Summit and Storey. It is a losing proposition for those who live in Crestridge generally as it will lower property values of all of those who live in the subdivision. Our property values will drop, there is no doubt. I suggest if the developer disputes this, let them guarantee that it in writing. They of course will not. Also of importance, our quality of life and enjoyment will be diminished. There are good locations for apartments and they have their place in any good and strong community. This is a bad location for apartments of any kind and it will only weaken area property values and quality of life for those of us who are established in the neighborhood.

This apartment complex will negatively affect the large investment of time and money that each home owner has put into their property.

I thank you for your time and consideration.

Thomas Hood
3122 Holland Ct
Cheyenne WY
307-286-6718

fastwolfhounds@gmail.com

A handwritten signature in black ink, appearing to read "Thomas Hood", written in a cursive style.

RECEIVED

AUG 26 2013

August 23, 2013

BUILDING DEPARTMENT

City of Cheyenne Development Office
Attn: Brett Walker
2101 O'Neil Avenue
Cheyenne, WY 82001

Re: Zone Change Request Application for All of Lots 15 & 16, Block 17, Crest Ridge, 4th Filing

Dear Mr. Walker;

As adjacent property owners, we are opposed to the above referenced Zone Change Request (ZCR) based on the proposed development of the subject property as shown on the July 2013 map submitted by Steil Surveying Services, LLC on behalf of Leaning Tree Homes.

Taken at face value, the ZCR seems reasonable: re-zoning the subject property from Neighborhood Business to Medium Density Residential would achieve consistency with zoning to the south and west. However, the proposed development of the subject property, which is driving this ZCR, is neither consistent nor compatible with the existing use of the adjacent land.

Our opposition to the ZCR and proposed development (ZCR/PD) is based on the following:

1. If approved, the ZCR/PD would fundamentally and irrevocably change the character and culture of both the immediate neighborhood and the greater Crest Ridge neighborhood by allowing an inconsistent and incompatible use. The subject property is surrounded on three sides by single-family homes and by Storey Boulevard to the north. With only a single exception (a renter-occupied single-family home), the homes on Holland Court and Summit Court - the two streets directly affected by the ZCR/PD - are owner-occupied, single-family homes. The greater Crest Ridge neighborhood is overwhelmingly comprised of owner-occupied, single-family homes; on either side of Storey Boulevard, from Powderhouse Road to Ridge Road, every structure is a single-family home. The nearest multi-family dwellings to our property are ¾ mile south in the Beaver Ridge subdivision and on Ridge Road near Dell Range Boulevard.

If approved, the ZCR/PD would create the only renter-occupied, multi-family housing complex within the Crest Ridge neighborhood and along Storey Boulevard from Ridge Road to Powderhouse Road. Instead of well-maintained, nicely landscaped, somewhat upscale single-family homes in the neighborhood, the ZCR/PD would create six two-story fourplexes complete with a 36-space parking lot, and an unknown number of industrial-size dumpsters and street lights to illuminate the complex throughout the night.

2. The ZCR/PD would result in a significant disparity in family density between the subject property and the adjacent property owners/greater Crest Ridge neighborhood. Each of the four adjoining lots to the south of the subject property are approximately one-quarter acre in size (our property is 11,192 square feet = 0.26 acre), and each are occupied by a single family, resulting in an existing family density of four families per acre. In the greater Crest Ridge neighborhood, lot size varies somewhat, so it's reasonable to assume a somewhat higher family density, say 4.5 families per acre. If approved, *the ZCR/PD would result in a family density of 20 families per acre 24 families/1.2 acre) on the subject property – that's five times the existing density for the four adjoining lots south of the subject property and four-and-a-half times the existing density of the greater Crest Ridge neighborhood.* This is a radical and significant change from the existing the use of the land.

3. The ZCR/PD would result in negative impacts, both social and financial, to the adjacent property owners and the greater Crest Ridge neighborhood. In the 12 years that we have lived in our current location, we have experienced zero incidences of vandalism, trespass or crime, and have never had to contact the police about excess noise. Although that record may not extend to all adjacent property owners and the greater Crest Ridge neighborhood, overall this neighborhood is safe, quiet, clean, and rarely has incidents that require police attention. The ZCR/PD would significantly alter that situation - it is unfortunate, but true, that the vast majority of renter-occupied, multi-family housing complexes require a disproportionate amount of police intervention for misdemeanor and felony crime, vandalism, fighting, loud parties, excess noise, trash, abandoned vehicles, etc., and this would be occurring across our back fences. Not only would this radically change the character and culture of the Crest Ridge neighborhood, it would depress our property values and those of the entire Crest Ridge neighborhood.

We specifically chose the Crest Ridge neighborhood when we purchased our home because it was comprised entirely of newer, somewhat upscale, affordable owner-occupied single-family homes. We, and many, if not most, of our neighbors, have made considerable investments - including blood, sweat and tears - to our property, both interior and exterior, with the goal of creating and maintaining a safe, comfortable and appealing year-round indoor and outdoor living space. Our property value has increased, in good part, in proportion to our effort and investment, as have other properties in the Crest Ridge neighborhood. Buyer appeal and salability of property in the Crest Ridge neighborhood has been, and continues, to remain very high, but if the ZCR/PD is approved, that would change: property values and salability on Holland Court and Summit Court would plummet, causing a ripple effect throughout the Crest Ridge neighborhood.

We are not opposed to housing complexes in general, just those that are proposed in an established neighborhood comprised almost entirely of owner-occupied, single-family homes

We know very little about the owner of the subject property (Are they Wyoming residents? Are they Cheyenne residents? Do they have children in Anderson Elementary School?), but we do know one thing - they care nothing for the current property owners in the Crest Ridge neighborhood. They don't care if our property values will plummet if the ZCR/PD is approved. They don't care if our investment in our property is lost while their investment soars. They don't care that the culture and character of the Crest Ridge neighborhood as it has grown and evolved over the past 15 years or so will be destroyed. They don't care about anything but milking every dollar out of every square inch of the subject property over the longest possible length of time. Is this the kind of neighbor you would want in your neighborhood? If not, then please don't allow this kind of neighbor in our neighborhood.

In conclusion, we believe this ZCR/PD is ill-conceived, inappropriate, incompatible and disrespectful, both to the adjacent property owners and the greater Crest Ridge neighborhood. We ask the Planning Commission to reject this ZCR/PD.

Having said the above, we recognize that the owner of the subject property expects a reasonable return on the investment. If, at some future point in time, a ZCR/PD is submitted that respects the character and culture of the Crest Ridge neighborhood and that is consistent and compatible with the existing use of the land (*e.g.* four single-family homes or possibly two twin-homes on the subject property), it would likely not generate opposition.

Thank you for the opportunity to comment on this ZCR/PD.



Roger Alexander
Adjoining Property Owner



Kathryn Alexander
Adjoining Property Owner

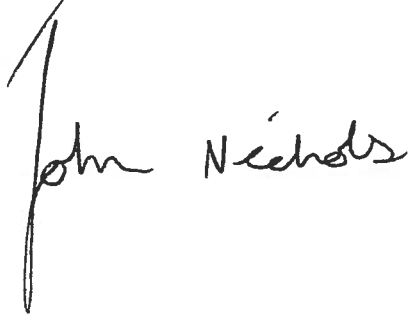
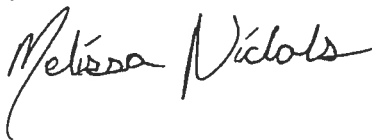
8/30/2013

City Council Board members and to whom it my concern.

My name is John Nichols and my wife and I own 3210 Holland court Cheyenne WY. My wife and I are against the re-zoning of our neighborhood to accommodate the 4-plex apartment building plan going onto Story Boulevard. Here are some reasons why we are against this. First off, during the late afternoon at the intersection of Story Boulevard and Ridge Road the traffic gets very bad, it is almost an impossible intersection to navigate between 4-6 pm. By adding these apartments, not 100 yards, from this intersection would make Story a nightmare for anyone using it and also very dangerous. Second, I can see by the building plan, that there is not enough parking in the complex to accommodate the tenant's (if each family owns 2 vehicles), let alone on weekends when the tenants have guests over. Where will these people park? All along Story? in our neighborhood? using our yards and private property as "short cuts" to the complex? Third and lastly, The Crest Ridge neighborhood is traditionally a single family home neighborhood and the addition of a multi-family complex would change the complexion and feel of our neighborhood.

Due to prior work commitments I will not be able to attend the September 3rd meeting on the subject. Please accept this letter as my representation to the meeting for the proposed re- zoning and please note my disapproval and objection to the proposed re-zoning.

Thank you for your consideration to this letter.

A handwritten signature in black ink that reads "John Nichols". The signature is written in a cursive style with a large, stylized initial "J".A handwritten signature in black ink that reads "Melissa Nichols". The signature is written in a cursive style with a large, stylized initial "M".



Zoning Change Lots 15 & 16 Crest Ridge
Martin McGuffey to: BWalker

09/03/2013 08:33 AM

From: "Martin McGuffey" <mcguffeym@bresnan.net>

To: BWalker@cheyennecity.org,

History: This message has been forwarded.

To Whom It May Concern:

I am writing to oppose the zoning change that will allow 6 apartment building to be built on Lots 15 & 16 of Crest Ridge 4th Filing. The change to medium density zoning and allow 24 family units in an area of two lots is not medium density.

The proposal will increase the already voluminous traffic on Story Blvd.

I would not oppose twin town homes or other projects that assure home ownership at a lower density.

Thank you for your consideration.

M. McGuffey 3116 Holland Ct. Cheyenne, WY

Approved as to
form only:
6YT
Date: 9/4/13

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENTS, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM NB NEIGHBORHOOD BUSINESS TO MR-2 MEDIUM DENSITY RESIDENTIAL - DEVELOPING FOR LOTS 15 AND 16, BLOCK 17, CREST RIDGE, 4TH FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO STOREY BOULEVARD, BETWEEN CANYON AND RIDGE ROADS)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on September 3, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming, is hereby changed to MR-2 Medium Density Residential - Developing.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

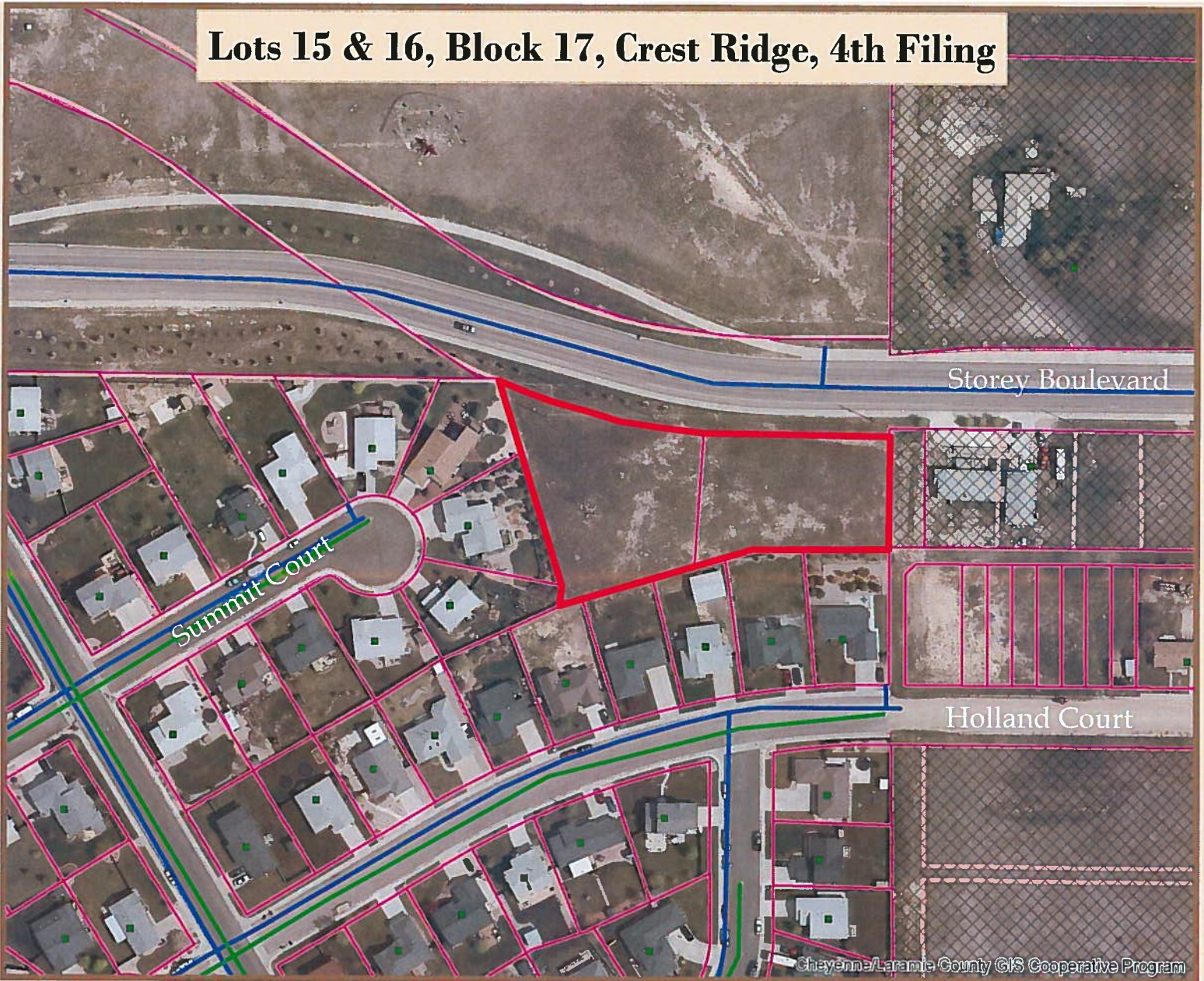
RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

Lots 15 & 16, Block 17, Crest Ridge, 4th Filing



Applicant: Leaning Tree Homes
 Agent: Casey Palma, Steil Surveying Services
 Application Number(s): UDC-13-00306
 Zone Change Request

Ownership
 Platted Info
 County Jurisdiction
 Water Mains
 Sanitary Sewer Mains

1 in = 150 ft

A Zone Change request from
 NB Neighborhood Business to
 MR-2 Med Density Resl-Developing

Zone Districts



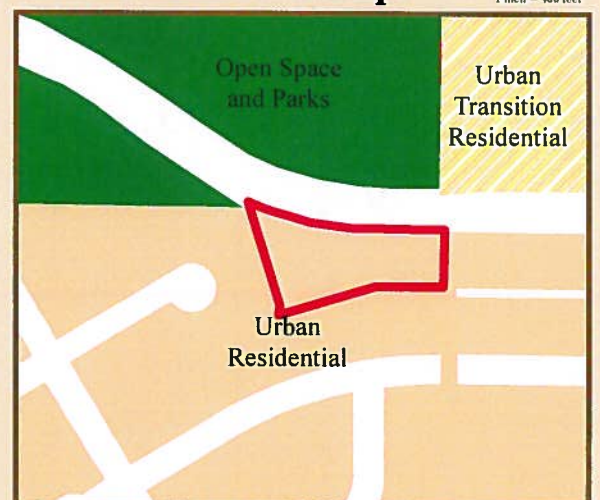
This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

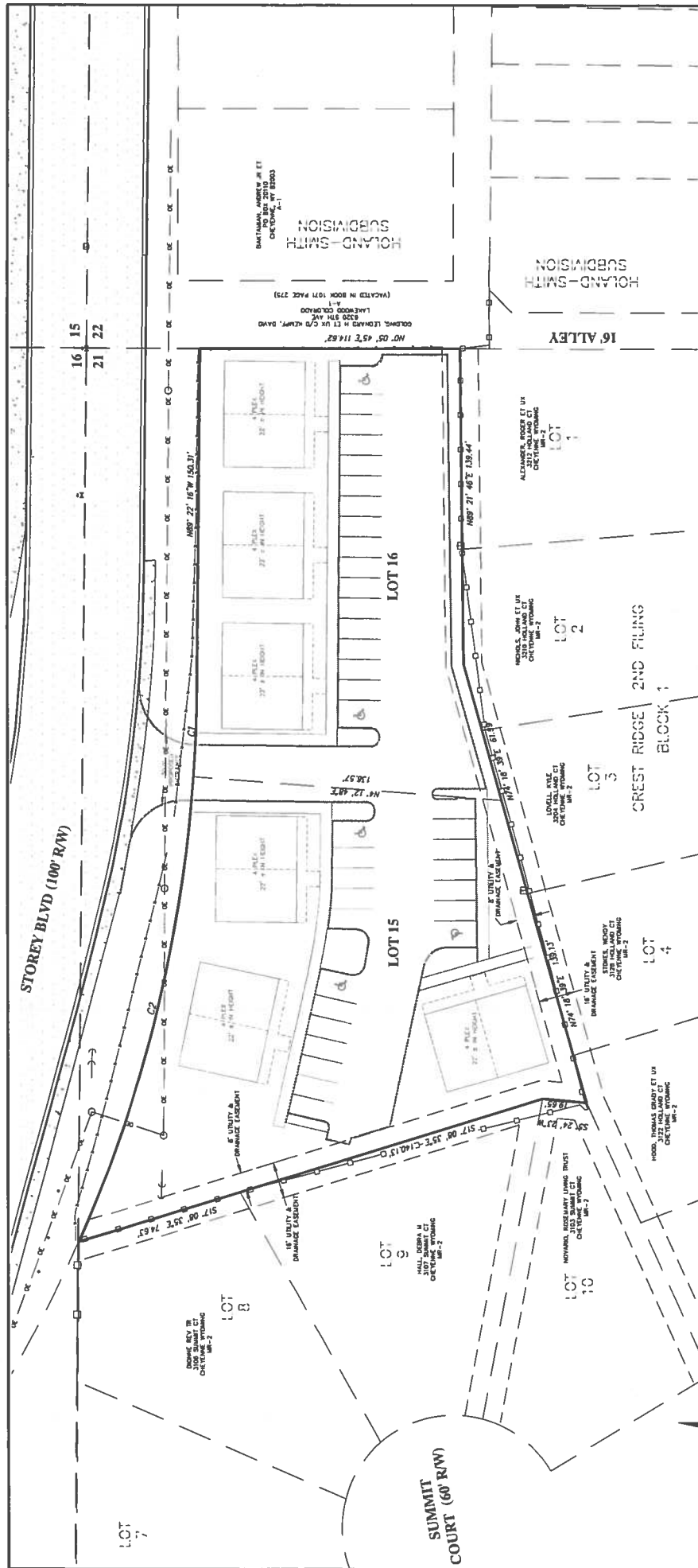


6 August 2013

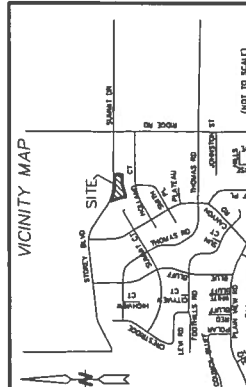
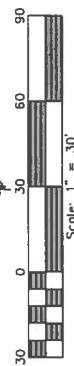
BRW

Future Land Use Map





CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	1° 15' 15"	622.96'	N87° 37' 19" W	39.00'	39.01'
C2	19° 28' 27"	625.74'	N75° 04' 10" W	211.66'	212.68'



COMPUTATION TABLE	
TOTAL SITE AREA	51,301 SQ. FT. (1.2 AC.)
BUILDING AREA	99,784 SQ. FT.
LANDSCAPE AREA	1,880
ESTIMATED TIPS PER DAY	1,880

ZONING
 CURRENT = NB
 PROPOSED = MR-2

LEGAL DESCRIPTION
 LOT 15 & 16, BLOCK 17,
 CREST RIDGE 4TH FILING,
 CITY OF CHEYENNE,
 LARAMIE COUNTY, WYOMING.

- LEGEND**
- - - EXISTING WOOD FENCE
 - - - EXISTING WIRE FENCE LINE
 - - - EXISTING UTILITY POLE
 - - - EXISTING DUTY WIRE
 - - - EXISTING OVERHEAD ELECTRIC LINES
 - - - EXISTING TELEPHONE PEDESTAL

ZONE CHANGE MAP **FOR** **LEANING TREE HOMES** **FOR**

LOTS 15 & 16, BLOCK 17,
 CREST RIDGE 4TH FILING,
 CITY OF CHEYENNE
 LARAMIE COUNTY, WYOMING.

PREPARED JULY, 2013



STEIL SURVEYING SERVICES, LLC
 PROFESSIONAL LAND SURVEYORS
 1102 W. 18th ST. CHEYENNE, WY. 82001 (307)834-7873
 756 GILCHRIST ST. WHEATLAND, WY. 82201 (307)322-9789